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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**DEFENDANT TYLER JAMES
ROBINSON'S MOTION *IN LIMINE* TO
PRECLUDE THE UTILIZATION OF
ARTICLE I, SECTION 12 OF THE
UTAH CONSTITUTION AND RULE
1102 OF THE UTAH RULES OF
EVIDENCE TO SANCTION THE
ADMISSIBILITY OF HEARSAY
EVIDENCE TO ESTABLISH
PROBABLE CAUSE AT THE
PRELIMINARY HEARING;
MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT THEREOF**

Case No. 251403576

Honorable Tony F. Graf, Jr.

MOTION

Defendant, Tyler James Robinson, by and through his counsel of record, hereby moves this Honorable Court for an Order precluding the State from utilizing article I, section 12 of the Utah Constitution, and Rule 1102 of the Utah Rules of Evidence to sanction the admissibility of

hearsay evidence to establish probable cause at the preliminary hearing. This motion is made on the ground that the use of hearsay evidence to establish probable cause at a preliminary hearing in a capital case violates the Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, and separation of powers principles.

INTRODUCTION

With respect to confrontation and cross-examination of witnesses, the Supreme Court has held that “[i]n almost every setting where important decisions turn on questions of fact, due process requires an opportunity to confront and cross-examine adverse witnesses.” *Goldberg v. Kelly*, 397 U.S. 254, 269 (1970); *see also ICC v. Louisville & Nashville R.R.*, 227 U.S. 88, 93–94 (1913). Where “the evidence consists of the testimony of individuals whose memory might be faulty or who, in fact, might be perjurers or persons motivated by malice, vindictiveness, intolerance, prejudice, or jealousy,” a party’s right to show that it is untrue depends on the rights of confrontation and cross-examination. The Court has thus “been zealous to protect these rights from erosion. It has spoken out not only in criminal cases, . . . but also in all types of cases where administrative . . . actions were under scrutiny.” *Greene v. McElroy*, 360 U.S. 474, 496–97 (1959).

In apparent conflict with these cases, since 1995, Utah’s Constitution has decreed in article 1, section 12 that:

Where the defendant is otherwise entitled to a preliminary examination, the function of that examination is limited to determining whether probable cause exists unless otherwise provided by statute. *Nothing in this constitution* shall preclude the use of reliable hearsay evidence as defined by statute or rule in whole or in part at any preliminary examination to determine probable cause or at any pretrial proceeding with respect to release of the defendant if appropriate discovery is allowed as defined by statute or rule.

(emphasis added).

Going even further, Rule 1102(a) of the Utah Rules of Evidence, which in its current form was enacted by the Legislature as 2024 UT H.J.R. 13, declares that certain types of hearsay reports must be considered “reliable hearsay” as a matter of law, including but not limited to “scientific, laboratory, or forensic reports and records”, “medical and autopsy reports and records”, “a statement of a non-testifying peace officer to a testifying peace officer”, and “a statement of a declarant that is written, recorded, or transcribed verbatim which is... under oath or affirmation... or ...pursuant to a notification to the declarant that a false statement made therein is punishable[.]”

The Utah Supreme Court has had two occasions to address this scheme. First, in *State v. Timmerman*, the Court held that “the plain language of the 1995 amendment to article I, section 12 of the Utah Constitution removed the constraints of Utah’s Confrontation Clause from preliminary hearings. Admission of evidence at preliminary hearings is exclusively governed by the reliable hearsay language in the Utah Constitution and Rule 1102 of the Utah Rules of Evidence.” 2009 UT 58, ¶ 16, 218 P.3d 590. This holding relied upon Utah’s Confrontation Clause and not any other state or federal constitutional provision.

In the same case, the Court considered and rejected a claim that the Sixth Amendment’s Confrontation Clause prohibited the use of hearsay at a preliminary hearing, holding that “the federal Confrontation Clause does not apply to preliminary hearings.” *Id.* ¶ 13. Although the Court rejected this claim, the fact that the Court even considered it suggests that the Court was aware of the obvious fact that the federal constitution could impose limitations on Utah preliminary hearings that go beyond the reliable hearsay language in the Utah Constitution and Rule 1102.

Second, in *State v. Lopez*, where the court considered and upheld the right of the defendant to subpoena a victim witness under certain circumstances, the court indicated:

The cited provision of the Victims' Rights Amendment, for one thing, is not dispositive. It says only that "[n]othing *in this constitution* shall preclude the use of reliable hearsay" in the determination of "probable cause." ... That leaves room for the revival of a right to compel and confront witnesses as a matter of legislative or judicial policy. ... allowing the "use of reliable hearsay evidence as *defined by statute or rule*" . . . And that leaves open the questions whether and to what extent the terms of the code or our rules preserve a defendant's right to subpoena witnesses.

2020 UT 61, ¶ 39, 474 P.3d 949 (quoting Utah Const. art. I § 12) (emphases in original).

As will be demonstrated in this motion, article 1, section 12 and Rule 1102 violate several of Mr. Robinson's federal constitutional rights, including the : (1) Sixth Amendment right to the effective assistance of counsel; (2) Fourteenth Amendment rights to procedural due process and equal protection; (3) Due Process Clause of the Fourteenth Amendment because it establishes an unconstitutional mandatory presumption of reliability of an overbroad range of hearsay evidence; (4) Eighth Amendment right to be free from cruel and unusual punishment; (5) Fourth Amendment and separation of powers principles; and (6) Confrontation Clause of the Sixth Amendment.

ARGUMENT

I. Article 1, section 12 and Rule 1102 violate Mr. Robinson's Sixth Amendment right to the effective assistance of counsel.

In *Coleman v. Alabama*, 399 U.S. 1 (1970), the issue before the Court was whether Alabama's preliminary hearing was a critical stage in the prosecution, requiring the Sixth Amendment appointment and effective assistance of counsel. The Court held Alabama's preliminary hearing was a critical stage because "under Alabama law the sole purposes of a

preliminary hearing are to determine whether there is sufficient evidence against the accused to warrant presenting his case to the grand jury” and:

Plainly the guiding hand of counsel at the preliminary hearing is essential to protect the indigent accused against an erroneous or improper prosecution. First, the lawyer’s skilled examination and cross-examination of witnesses may expose fatal weaknesses in the State’s case that may lead the magistrate to refuse to bind the accused over. Second, in any event, the skilled interrogation of witnesses by an experienced lawyer can fashion a vital impeachment tool for use in cross-examination of the State’s witnesses at the trial, or preserve testimony favorable to the accused of a witness who does not appear at the trial. Third, trained counsel can more effectively discover the case the State has against his client and make possible the preparation of a proper defense to meet that case at the trial. Fourth, counsel can also be influential at the preliminary hearing in making effective arguments for the accused on such matters as the necessity for an early psychiatric examination or bail.

The inability of the indigent accused on his own to realize these advantages of a lawyer’s assistance compels the conclusion that the Alabama preliminary hearing is a ‘critical stage’ of the State’s criminal process at which the accused is ‘as much entitled to such aid (of counsel) * * * as at the trial itself.’ [*Powell v. Alabama*, 287 U.S. 45, 57 (1932)].

Id. at 8-10.

In *Gerstein v. Pugh*, the Court decided that the Fourth Amendment requires a judicial determination of probable cause for arrest when a person is detained under a prosecutor’s information. 420 U.S. 103, 105 (1975). However, the defendant is not entitled to “the full panoply of adversary safeguards—counsel, confrontation, cross-examination, and compulsory process for witnesses,” at this hearing. *Id.* at 119. The Court based this decision on an important distinction: the hearing’s “limited function and nonadversary character.” *Id.* at 121. The specific and exclusive purpose of the *Gerstein* hearing is to determine whether probable cause exists to detain the individual, not to provide judicial review of the decision to prosecute. *Id.* at 119-20. The defendant’s release following the federal *Gerstein* hearing does not mean he will not be prosecuted. *Id.* at 123.

By contrast, in Utah, the purpose of the preliminary examination *is* to determine whether probable cause exists to prosecute the individual. This distinction is important because a *Gerstein* hearing is not a critical stage. *Id.* at 122. In *Gerstein*, the Court specifically referenced Alabama’s preliminary hearing as distinct from a hearing determining probable cause for arrest, listing “two critical factors.” First, the function of Alabama’s preliminary hearing was to determine whether sufficient evidence existed to charge the defendant with an offense. *Id.* at 122-23. Second, the Court gave particular attention to the fact that at a preliminary hearing, the defendant was allowed to confront and cross examine witnesses. *Id.* at 149. As the Supreme Court clearly explained:

Both the District Court and the Court of Appeals held that the determination of probable cause must be accompanied by the full panoply of adversary safeguards—counsel, confrontation, cross-examination, and compulsory process for witnesses. A full preliminary hearing of this sort is modeled after the procedure used in many States to determine whether the evidence justifies going to trial under an information or presenting the case to a grand jury. *See Coleman v. Alabama*, 399 U.S. 1, 90 S.Ct. 1999, 26 L.Ed.2d 387 (1970); Y. Kamisar, W. LaFare & J. Israel, *Modern Criminal Procedure* 957—967, 996—1000 (4th ed. 1974). The standard of proof required of the prosecution is usually referred to as ‘probable cause,’ but in some jurisdictions it may approach a *prima facie* case of guilt. ALI, *Model Code of Pre-arraignment Procedure*, Commentary on Art. 330, pp. 90—91 (Tent. Draft No. 5, 1972). *When the hearing takes this form, adversary procedures are customarily employed. The importance of the issue to both the State and the accused justifies the presentation of witnesses and full exploration of their testimony on cross-examination.* This kind of hearing also requires appointment of counsel for indigent defendants.

Id. at 119-20 (emphasis added).

Although, as pointed out in *Lopez*, the discovery function of a Utah preliminary hearing “was eliminated by the constitutional amendment ratified in 1995”, like the preliminary hearing at issue in *Coleman*, the central purpose of a Utah preliminary hearing was and remains to determine whether sufficient evidence exists to charge the defendant with an offense. *See Lopez*, 2020 UT 61, ¶ 44.

For this reason, the Utah courts have continued to hold, both before and after the 1995 amendment, that a Utah preliminary hearing is a critical stage of the criminal proceeding within the meaning of *Coleman*. See *State v. Montes*, 2019 UT App 74, ¶ 38, 442 P.3d 1247 (“The inability of an accused to realize the advantages of effective examination and cross-examination absent a lawyer’s assistance makes a preliminary hearing ‘a critical stage of the State’s criminal process at which the accused is as much entitled to such aid of counsel as at the trial itself.’”) (quoting *Coleman*); *State v. Christiansen*, 2015 UT 74, ¶ 25, 365 P.3d 1189 (“A prosecutor who files a criminal information commences adversary litigation. The defendant then has a right to be informed of the charges and to be represented by counsel.”) (citing *Coleman*); *State v. Brickey*, 714 P.2d 644, 646 (Utah 1986) (“While the preliminary hearing is not a full-blown determination of an accused’s guilt or innocence, it is nonetheless a ‘critical stage’ in the criminal process, and proper consideration for a defendant’s constitutional rights must be observed.”) (citing *Coleman*); *State v. Anderson*, 612 P.2d 778, 783–84 (Utah 1980) (“The fundamental purpose served by the preliminary examination is the ferreting out of groundless and improvident prosecutions.... This, also, demands the application of certain basic procedural safeguards to that proceeding.”) (citing *Coleman*), *overruled on other grounds in Timmerman*, 2009 UT 58.

Thus, unlike the Sixth Amendment right to confrontation at issue in *Timmerman*, where the Utah Supreme Court held that “Sixth Amendment confrontation rights apply only to trials and not to Utah’s preliminary hearings”, *Timmerman*, 2009 UT 58, ¶ 10, the Sixth Amendment right to counsel is not limited to the trial, and specifically extends to a Utah preliminary hearing. This means that if defense counsel at a Utah preliminary hearing is to be something more than merely a potted plant, he or she must have available and utilize all the necessary tools of effective advocacy, including the right to cross examine any hearsay declarants.

As was held in *United States v. Cronin*, “of all the rights that an accused person has, the right to be represented by counsel is by far the most pervasive for it affects his ability to assert any other rights he may have.... The special value of the right to the assistance of counsel explains why [i]t has long been recognized that the right to counsel is the right to the effective assistance of counsel.” 466 U.S. 648, 654 (1984) (internal citation omitted). The fundamental right to counsel necessarily includes effective confrontation and cross-examination. *Id.* at 659 (“The presumption that counsel’s assistance is essential requires us to conclude that a trial is unfair if the accused is denied counsel at a critical stage of his trial. Similarly, if counsel entirely fails to subject the prosecution’s case to meaningful adversarial testing, then there has been a denial of Sixth Amendment rights that makes the adversary process itself presumptively unreliable.”)

Defense counsel have repeatedly been found ineffective by both state and federal courts for failing to effectively utilize the essential tool of cross examination. *See e.g., State v. Eddington*, 2023 UT App 19, ¶¶ 43-48, 525 P.3d 920 (defendant, in prosecution for object rape and sexual battery, received ineffective assistance of counsel, when counsel did not seek to cross-examine victim about some details of her sexual encounter with defendant); *State v. Salazar*, 2022 UT App 38, ¶ 50, 509 P.3d 198 (“A decision by Trial Counsel not to use [text] messages as impeachment evidence because he feared that the jury might nonetheless find [the victim] credible and still believe her account of the assault would not be reasonable and would be an abdication of counsel’s ‘duty’ to make ‘the trial a reliable adversarial testing process.’” (quoting *Strickland v. Washington*, 466 U.S. 668, 688 (1984))).¹

¹ *See also Floyd v. Filson*, 949 F.3d 1128, 1143–44 (9th Cir. 2020) (recognizing that constitutionally deficient cross-examinations occur when “there were glaring failures to ask even basic questions”); *Skaggs v. Baker*, 774 F. App’x 421, 427 (10th Cir. 2019) (“We see neither a

While these cases found a Sixth Amendment violation grounded in defense counsel's own ineptitude, the result must be the same where, as here, the infringement of counsel's duty to utilize cross examination stems not from counsel's ineffectiveness but from an impediment imposed by a state constitutional provision and a rule. *Cf. Kentucky v. Stincer*, 482 U.S. 730, 737 (1987) (pointing out that cases finding a violation of the Sixth Amendment right to cross examine include those where "the opportunity for cross-examination has been restricted by law or by a trial court ruling."); *Davis v. Alaska*, 415 U.S. 308 (1974) (defense counsel was unconstitutionally restricted by state confidentiality provisions from questioning a witness about his juvenile criminal record, although such evidence might have affected the witness' credibility); *Delaware v. Van Arsdall*, 475 U.S. 673 (1986) (defense counsel was precluded by

strategic advantage nor an objectively reasonable rationale for failing to challenge Dr. Swanson on cross-examination with her report excluding Mr. Skaggs 'as a possible contributor of the [amylase]."); *Rhodes v. Vannoy*, 751 F. App'x 524, 530 (5th Cir. 2018) (counsel was prejudicially ineffective when she asked the victim about his use of pain medications at the time of the identification, but then did not impeach him with available medical records after the victim denied being on any medication.); *Moore v. Sec'y Pennsylvania Dep't of Corr.*, 640 F. App'x 159 (3d Cir. 2016) (Murder defendant's counsel was ineffective for failing to cross examine codefendant, who testified for state, about benefits he received in exchange for his testimony; there was no strategic reason not to impeach codefendant, codefendant was critical witness for prosecution and, by cross-examining him, counsel would have largely neutralized his testimony and prevented it from bolstering prosecution's other evidence.); *Raether v. Meisner*, 608 F. App'x 409, 414 (7th Cir. 2015) ("We can see no reasonable justification for failing to make use of the crucial witnesses' prior inconsistent statements."); *Peoples v. Lafler*, 734 F.3d 503, 513 (6th Cir. 2013) ("Failure to impeach the credibility of key witnesses with known false testimony is an egregious error in a criminal case."); *Higgins v. Renico*, 470 F.3d 624, 633, 634 (6th Cir. 2006) ("Young was the key to the State's case; yet [trial counsel], who had the weapons to discredit [the witness], allowed [the witness's] testimony to go unchallenged."); *Reynoso v. Giurbino*, 462 F.3d 1099, 1112–13 (9th Cir. 2006); *Cargle v. Mullin*, 317 F.3d 1196 (10th Cir. 2003) (Defense counsel's performance at guilt phase of defendant's murder trial was constitutionally ineffective, in part because counsel failed to impeach key state witness based upon undisclosed bias and state inducement for his testimony.); *United States v. Tucker*, 716 F.2d 576, 585 (9th Cir. 1983) ("[Trial counsel's] most serious dereliction of duty during trial, however, was the failure to utilize any of the prior statements given by government witnesses.").

the trial court from questioning a witness about the State's dismissal of a pending public drunkenness charge against him).

Like the statute at issue in *Davis*, article I, section 12 and Rule 1102 prohibit defense counsel from discharging their Sixth Amendment duty to make the preliminary hearing a reliable adversarial testing process. As was concluded in *Gerstein*, “[t]he importance of the issue to both the State and the accused justifies the presentation of witnesses and full exploration of their testimony on cross-examination.” 420 U.S. at 119–20. Because article I, section 12 and Rule 1102 prohibit this full exploration, these provisions are unenforceable in this case and Mr. Robinson must be allowed to cross examine any hearsay declarant offered by the State.

II. Article 1, section 12 and Rule 1102 violate Mr. Robinson's Fourteenth Amendment rights to procedural due process and equal protection.

In Utah, as elsewhere, the preliminary hearing process is subject to the requirements of procedural due process. *See, e.g., State v. Labrum*, 2025 UT 12, 568 P.3d 1075.

The United States Supreme Court held long ago in *Hurtado v. California*, 110 U.S. 516 (1884), that due process does not require the states to institute Fifth Amendment grand jury procedures. According to *Hurtado*, the states are free to do away with the grand jury system and develop their own judicial proceedings, as long as the alternate proceedings provide due process. *Id.* at 535. In fact, the United States Supreme Court based this decision on California's preferred alternate proceeding—the preliminary examination. *Id.* at 538. The Court found California's preliminary examination satisfied due process requirements as an acceptable substitute for the indictment process because the criminal defendant had the right to counsel and cross-examination. *Id.* While the states are not required to provide any specific process, where they do, the process must adhere to federal due process standards. *Id.* at 516, 535. As a due process alternative to indictment by grand jury, the preliminary examination comes with constitutional

rights, including the fundamental rights to counsel and confrontation. *See Coleman*, 399 U.S. at 3-9.

“[T]he Due Process Clause provides that certain substantive rights—life, liberty, and property—cannot be deprived except pursuant to constitutionally adequate procedures.” *Cleveland Bd. of Educ. v. Loudermill*, 470 U.S. 532, 541 (1985). Importantly, “‘minimum procedural requirements are a matter of federal law, they are not diminished by the fact that the State may have specified its own procedures that it may deem adequate for determining the preconditions to adverse official action.’” *Id.* at 541 (cleaned up) (quoting *Vitek v. Jones*, 445 U.S. 480, 491 (1980)). “In short, once it is determined that the Due Process Clause applies, ‘the question remains what process is due.’” *Id.* (quoting *Morrissey v. Brewer*, 408 U.S. 471, 481 (1972)). “The answer to that question is not to be found in [a state] statute.” *Id.*

The Court addressed this question in the context of parole revocation hearings in *Morrissey v. Brewer*, holding that during parole revocation hearings, due process requires confrontation and cross-examination as a minimum protection. 408 U.S. at 489. *In Morrissey v. Brewer*, defendant Morrissey was arrested on a parole violation, resulting in subsequent revocation of parole and incarceration. *Id.* at 472-73. Morrissey filed a habeas petition, alleging he was deprived due process because his parole was revoked without a hearing. *Id.* at 474.

The Court held that the parole revocation decision is subject to the Fourteenth Amendment, even though parole revocation is not part of the criminal prosecution, because the parolee has a great interest in retaining his liberty. *Id.* at 480-82. The Court noted that in addition to the parolee’s interest in his own liberty, society also has an interest—“the chance of restoring him to normal and useful life.” *Id.* at 484. Terminating the parolee’s liberty is a “grievous loss” and requires some process. *Id.* at 482. In determining what process is due, the Court considered

the State's interest in revoking parole, acknowledging that the State has an interest in returning a parolee to prison when it finds he has failed to follow his parole conditions. *Id.* at 483. Despite this, the Court held that the State has no interest in revoking parole without procedural guarantees, to ensure parole revocation is not based on erroneous information. *Id.* at 483–84.

The Court then examined the two stages of parole revocation: the preliminary hearing following arrest, which the Court likened to a probable cause for arrest determination, and the formal revocation hearing. *Id.* at 485, 488. The purpose of the preliminary hearing is to determine whether reasonable grounds exist to believe the individual has violated parole conditions. *Id.* at 485. At this hearing, an independent officer makes a preliminary decision of whether there is probable cause to hold the parolee to answer to the parole board, who makes the final revocation decision. *Id.* at 487. To promote fairness, a neutral officer other than the parole officer reporting the violations makes this decision. *Id.* at 485–86. Due process requires the parolee have notice of this hearing and be free to testify and present evidence on his own behalf. *Id.* at 486–487. Lastly, the parolee may request the witnesses against him be made available for questioning in his presence. *Id.* at 487. Thus, even at this informal preliminary hearing, parolees are afforded confrontation and cross-examination rights.

At the formal revocation hearing, the parolee has the opportunity to show he did not violate the conditions of his parole, or that the violation does not warrant revocation. *Id.* at 488. The “minimum requirements of due process” at this stage include notice of the violations, disclosure of the evidence against the parolee, the opportunity to be heard and present evidence, the right to confrontation and cross-examination, a neutral hearing body, and a written statement describing the reasons for parole revocation. *Id.* at 207. The right to confrontation and cross-examination exists “unless the hearing officer specifically finds good cause for not allowing

confrontation.” *Id.* at 208. The Court gives an example of good cause to restrain confrontation rights: an informant who would be at a risk of harm if his identity were revealed. *Id.* at 487. The good cause requirement is rooted in the parolee’s interest in maintaining his liberty. *Id.* at 482.

Though some differences exist between probation and parole, the United States Supreme Court has held that the due process rights articulated in *Morrissey* apply equally at the requisite probation revocation hearings. *See Gagnon v. Scarpelli*, 411 U.S. 778, 781 (1973) (holding, “a probationer, like a parolee is entitled to a preliminary and final revocation hearing under the conditions specified in *Morrissey v. Brewer*”). *See also Brimhall v. Turner*, 502 P.2d 116, 117 (1972) (alleged parole violator “is entitled to certain minimal procedural protections to have the issues determined. These include that he should have a written notice wherein he was charged with failure, be given an opportunity to answer, be apprised of the evidence against him, have the privilege of cross-examining witnesses, and of being heard, if he so desires, and be entitled to a fair and reasonable consideration and adjudication thereon by proper authority, as opposed to one which is demonstrably capricious or arbitrary.”); *State v. Tate*, 1999 UT App 302, 989 P.2d 73 (trial court’s error in admitting hearsay statements that probationer was allegedly involved in passing stolen checks and aggravated assault constituted reversible error, where probationer was denied opportunity to confront adverse witnesses and his due process rights were violated.); *Layton City v. Peronek*, 803 P.2d 1294 (Utah Ct. App. 1990) (same).

The criminally accused share many of the same liberty interests as the criminally convicted. Clearly, the criminally accused retain an interest in freedom from prosecution based on erroneous information. *See State v. Virgin*, 2006 UT 29, ¶ 20, 137 P.3d 787 (“The fundamental purpose served by the preliminary examination is the ferreting out of groundless and improvident prosecutions. This relieves the accused from the substantial degradation and

expense incident to a modern criminal trial when the charges against him are unwarranted or the evidence insufficient.” (cleaned up)).

Similarly, the State should have no interest in prosecuting individuals without an initial probable cause determination, including testing the reliability and veracity of witness testimony. *See Morrissey*, 408 U.S. at 484 (“there is no interest on the part of the State in revoking parole without any procedural guarantees at all.”).

Thus, as in *Morrissey*, *Gagnon*, and the other cases cited in this section, the criminally accused cannot be deprived of their liberty without due process, and inherent in due process protection is the right to confront witnesses and hearsay declarants.

A Utah preliminary hearing is analogous to the formal parole revocation hearing considered in *Morrissey*. At both, the defendant is entitled to present evidence, confront and cross-examine witnesses, and to be heard by a neutral individual. The Court in *Morrissey* determined that due process mandates these rights at the formal parole revocation hearing, and even at the informal preliminary hearing where no final decision is made. Under *Morrissey*, courts have prohibited the government from offering, or have allowed parolees to confront, the accusatory statements of accomplices, *United States v. Huckins*, 53 F.3d 276, 279 (9th Cir. 1995); experts, *United States v. Pierre*, 47 F.3d 241, 242 (7th Cir. 1995), *United States v. Martin*, 984 F.2d 308, 309–10 (9th Cir. 1993),;and crime victims, *United States v. Comito*, 177 F.3d 1166 (9th Cir. 1999), because the statements lack reliability. However, article 1, section 12 and Rule 1102 purport to make this type of unreliable hearsay admissible at preliminary hearings and prevent both the Court and the defense from questioning its reliability.

Unlike parole and probation revocation hearings, a Utah preliminary examination is a critical stage in the criminal prosecution. Thus, criminal defendants like Mr. Robinson should

receive at least as much due process protection as the Supreme Court has afforded parolees and probationers, if not more. *See Morrissey*, 408 U.S. at 480 (stating that “the revocation of parole is not part of a criminal prosecution and thus the full panoply of rights due a defendant in such a proceeding does not apply”); *Brimhall*, 502 P.2d at 117 (emphasizing that “[w]hen on[e] has been convicted, he is no longer entitled to the presumption of innocence nor to other protections which the law affords one who has only been accused of crime.”)

In sum, because a criminal defendant has an even greater liberty interest than a parolee or probationer, there is no rational basis, much less a compelling one, for denying confrontation and cross examination rights to a defendant facing a preliminary hearing, while granting those rights to parolees and probationers. Article 1, section 12 and Rule 1102 thus violate both the due process and equal protection clauses of the federal constitution.

III. Article 1, section 12 and Rule 1102 violate the Due Process Clause of the Fourteenth Amendment because it establishes an unconstitutional mandatory presumption of reliability of an overbroad range of hearsay evidence.

The United States Supreme Court has ruled that mandatory presumptions are unconstitutional because they shift the burden of persuasion to the accused. *Sandstrom v. Montana*, 442 U.S. 510 (1979). The presumption in *Sandstrom* concerned an essential element of the crime: intent to kill. *Sandstrom* asserted at trial that although he killed the victim, he did not do so “purposefully or knowingly,” and therefore was not guilty of deliberate homicide. The trial court issued the following jury instruction: “The law presumes that a person intends the ordinary consequences of his voluntary acts.” The Supreme Court reasoned that the jury instruction created a mandatory irrebuttable presumption that relieved the state of its burden of proving Sandstrom’s intent because if the jury found that Sandstrom’s actions were voluntary, the jury was required by the instruction to find that Sandstrom, as a matter of law, had the requisite

intent. Inasmuch as the burden of persuasion must always remain on the state in a criminal proceeding, the shifting of the burden of persuasion to Sandstrom to prove his innocence was unconstitutional. *Id.* at 523–24. *See also Francis v. Franklin*, 471 U.S. 307, 317 (1985) (prohibiting mandatory rebuttable presumptions).

The Supreme Court has also held in *County Court of Ulster County v. Allen*, that “in criminal cases, the ultimate test of any [evidentiary] device’s constitutional validity in a given case remains constant: the device must not undermine the factfinder’s responsibility at trial, based on evidence adduced by the State, to find the ultimate facts beyond a reasonable doubt.” 442 U.S. 140, 156 (1979); *see also State v. Chambers*, 709 P.2d 321, 325 (Utah 1985) (finding a rebuttable presumption unconstitutional).

In a case decided before *Franklin* held that mandatory rebuttable presumptions were violative of due process, the Utah Supreme Court in *Murray City v. Hall*, 663 P.2d 1314, 1320 (Utah 1983), assessed the constitutional validity of the rebuttable presumption set forth in § 41-6a-515. ² The *Hall* Court held that section 41–6–44.3(3) is a statutory exception to the hearsay

² Utah Code § 41-6a-515 provides in relevant part:

(2) In any action or proceeding in which it is material to prove that a person was operating or in actual physical control of a vehicle while under the influence of alcohol or any drug or operating with a blood or breath alcohol content statutorily prohibited, documents offered as memoranda or records of acts, conditions, or events to prove that the analysis was made and the instrument used was accurate, according to standards established in Subsection (1), are admissible if:

(a) the judge finds that they were made in the regular course of the investigation at or about the time of the act, condition, or event; and

(b) the source of information from which made and the method and circumstances of their preparation indicate their trustworthiness.

(3) If the judge finds that the standards established under Subsection (1) and the conditions of Subsection (2) have been met, there is a presumption that the test

rule and is “merely a codification of the findings necessary to establish a proper foundation for the introduction of breathalyzer evidence. It is a legislative recognition of the universal acceptance of the reliability of such evidence.” 663 P.2d at 1320. The Court upheld section 41–6–44.3(3) because of “(1) the legitimate governmental interest in not having to produce in every DUI case the public officer responsible for testing the accuracy of the breathalyzer and the ampoules, and (2) the alternative means available to an accused to cross-examine and confront such a witness.” *Id.* at 1322. In so holding, the Court stressed that

[That] constitutes a very limited intrusion upon an accused’s right of confrontation. The statute does not make the documents conclusive evidence that the breathalyzer was functioning properly..... In fact, if an accused feels that the machine was not functioning properly or wants to prove noncompliance with the standards established by the Commissioner of Public Safety, he/she can subpoena the public officer responsible for testing the accuracy of the breathalyzer and the ampoules.

Id.

In a subsequent case which reassessed the constitutional validity of Utah Code § 41-6a-515 in light of *Sandstrom*, *Franklin*, and *Allen*, the Utah Court of Appeals held that the statute was constitutional because “[t]he statute, by creating a statutory exception to the hearsay rule, compels the trial judge to admit the evidence for consideration by the trier-of-fact, but it does not mandate any conclusive presumption on the ultimate issue of guilt or innocence.” *Roosevelt City v. Nebeker*, 815 P.2d 738, 740 (Utah Ct. App. 1991).

In this case, as at a trial, the State at a preliminary hearing has the burden of proof. *See Virgin*, 2006 UT 29, ¶ 20 (“Under the probable cause standard, the prosecution has the burden of producing believable evidence of all the elements of the crime charged, but this evidence does

results are valid and further foundation for introduction of the evidence is unnecessary.

not need to be “capable of supporting a finding of guilt beyond a reasonable doubt.”) (internal quotation omitted). “Thus, the quantum of evidence required to clear this standard is ‘relatively low,’ ... —but it is still greater than zero. It is fully possible for the prosecution to put on some evidence and still fail to meet its burden of establishing probable cause.” *Labrum*, 2025 UT 12, ¶ 52.

The way in which a magistrate is supposed to determine whether the state has satisfied its burden of producing “believable evidence” is set forth in *Virgin*, as follows:

The bindover standard is intended to leave the principal fact finding to the jury. *See State v. Talbot*, 972 P.2d 435, 438 (Utah 1998) (explaining that a preliminary hearing “is not a trial on the merits, only a gateway to the finder of fact”). But the standard nevertheless gives magistrates discretion to discontinue groundless prosecutions. Under current law, magistrates may decline bindover if the prosecution fails to present sufficiently *credible* evidence on at least one element of the crime. *Clark*, 2001 UT 9, ¶ 15, 20 P.3d 300. Moreover, magistrates are free to decline bindover where the facts presented by the prosecution provide no more than a basis for speculation—as opposed to providing a basis for a reasonable belief. *See State v. Hester*, 2000 UT App 159, ¶¶ 14–17, 3 P.3d 725.

The key word that elevates magistrates’ role beyond that of a mere rubber stamp for the prosecution is “reasonable.” Indeed, the prosecution has not carried its burden if it merely shows belief rather than reasonable belief. Inclusion of the word “reasonable” in this standard suggests that, at some level of inconsistency or incredibility, evidence becomes incapable of satisfying the probable cause standard. When that is the case, magistrates are empowered to deny bindover.

Second, in their efforts to ferret out groundless prosecutions, magistrates may also make some limited credibility determinations at the preliminary hearing.

...

Magistrates may make credibility determinations in preliminary hearings, but the extent of those determinations is limited. In *Talbot*, we recognized that assessing “ ‘the credibility of the witnesses [in a preliminary hearing] is an important element in the determination of probable cause’ “ and that preventing magistrates from making credibility determinations “would undermine the ‘fundamental purpose served by the preliminary examination.’ “ 972 P.2d at 438. Indeed, that the probable cause standard demands “reasonable belief” rather than merely “belief” strongly suggests that magistrates must, to a certain extent, assess the credibility of the evidence presented.

2006 UT 29, ¶¶ 21-24.

The fundamental constitutional flaw in Rule 1102 is that it seeks to replace the magistrate's duty to "assess the credibility of the evidence presented" with a legislatively created irrebuttable presumption that broad categories of hearsay evidence must be considered "reliable hearsay". Unlike the rebuttal presumption upheld in *Hall* and *Nebeker*, the irrebuttable presumption contained in Rule 1102 is not confined to a narrow range of hearsay evidence the reliability of which has "universal acceptance", it does not leave the ultimate question of reliability of evidence in the hands of the magistrate, it establishes conclusive evidence that the hearsay is reliable, and it certainly does not constitute "a very limited intrusion upon an accused's right of confrontation." *Hall*, 663 P.2d at 1322. For all of these reasons, Rule 1102 must be declared unconstitutional under *Sandstrom*, *Franklin*, and *Allen*.

IV. Article 1, section 12 and Rule 1102 violate Mr. Robinson's Eighth Amendment right to be free from cruel and unusual punishment.

The Supreme Court has explained that "[i]n capital proceedings generally, this Court has demanded that factfinding procedures aspire to a heightened standard of reliability." *Ford v. Wainwright*, 477 U.S. 399, 411 (1986). *See also Deck v. Missouri*, 544 U.S. 622, 632 (2005) ("The Court has stressed the 'acute need' for reliable decisionmaking when the death penalty is at issue.").

Decisions applying a higher standard of review in capital cases emanate from the Eighth Amendment's Cruel and Unusual Punishment Clause but also flow from the Due Process Clause of the Fourteenth Amendment. This constitutionally required "heightened reliability" standard is not reserved only for penalty phase proceedings. As the Court explained in *Beck v. Alabama*, "we have invalidated procedural rules that tended to diminish the reliability of the sentencing determination. The same reasoning must apply to rules that diminish the reliability of the guilt

determination.” 447 U.S. 625, 638 (1980). The Court has also deployed the Eighth and Fourteenth Amendments to invalidate death sentences imposed, in part, upon hearsay documentary evidence not available to the defendant, *see Gardner v. Florida*, 430 U.S. 349 (1977), and under the Fourteenth Amendment upon a finding that a sentence of death was imposed after an insufficiently reliable voir dire. *Turner v. Murray*, 476 U.S. 28 (1986).

Since Mr. Robinson is only exposed to a potential sentence of death if this Court makes certain findings in his preliminary hearing based upon evidence that it (and not the State) finds reliable, application of article 1, section 12 and Rule 1102 here sanctions a preliminary hearing without any meaningful adversarial testing of a significant portion of the evidence the State intends to proffer.

The Utah Supreme Court has explained one of the connections between the Sixth Amendment and reliability is the need for adversarial testing. Referring to the United States Supreme Court, it has explained that “[a]s the Supreme Court has noted, this right is designed to ensure that criminal defendants receive a fair and reliable proceeding before life or liberty are taken.” *Menzies v. Galetka*, 2006 UT 81, ¶ 85. It explains further:

This fairness is “derive[d] from the adversarial nature of our justice system, which is premised on the ‘well-tested principle that truth--as well as fairness--is best discovered by powerful statements on both sides of the question.’” *United States v. Collins*, 430 F.3d 1260, 1264 (10th Cir. 2005) (quoting *Penson v. Ohio*, 488 U.S. 75, 84, 109 S. Ct. 346, 102 L. Ed. 2d 300 (1988)); *see also Strickland*, 466 U.S. at 688 (recognizing “the law’s presumption that counsel will fulfill the role in the adversary process that the [Sixth] Amendment envisions”). The right to the effective assistance of counsel therefore ensures the fairness and reliability of proceedings by requiring counsel to adequately discharge his or her role in the adversary process.

Id.

Application of article 1, section 12 and Rule 1102 in this case would violate the Eighth Amendment principle of heightened reliability because it would allow the Court to make a

critical factual finding necessary to pursuit of the death penalty based on evidence that has not been subjected to the full adversary testing process, and that is based on an assessment by the Legislature, and not a court, that certain evidence is reliable. Further, these sections eliminate the procedural rights of confrontation and cross examination, rights which are afforded even to alleged parole and probation violators. They thus violate another precept of Eighth Amendment jurisprudence, which is that “[w]hen a defendant’s life is at stake, the Court has been particularly sensitive to insure that every safeguard is observed.” *Gregg v. Georgia*, 428 U.S. 153, 187 (1976).

V. Article 1, section 12 and Rule 1102 violate the Fourth Amendment and separation of powers principles.

Importantly, in a capital case a state cannot, consistent with Federal Due Process, the Fourth and Eighth Amendments, and separation of powers principles, declare that hearsay reports, used as the basis to justify the continued detention of a suspect, are entitled to an irrebuttable presumption of reliability that neither the defense nor the magistrate can challenge. *See Gerstein*, 420 U.S. at 119–124 (1975) (for purposes of Fourth Amendment analysis in determining whether probable cause exists to detain an arrestee for a significant time pending trial, a full adversarial hearing, together with confrontation and cross-examination of witnesses, need not be afforded so long as a “timely *judicial* determination” of probable cause is made as a prerequisite to continued detention). The Court expressly held in *Gerstein* that “[w]hatever procedure a State may adopt, it must provide a fair and reliable determination of probable cause as a condition for any significant pretrial restraint of liberty, and this determination must be made *by a judicial officer* either before or promptly after arrest.” *Id.* at 124–25 (emphasis added). *See also Virgin*, 2006 UT 29, ¶ 24 (“[M]agistrates must, to a certain extent, assess the credibility of the evidence presented.” (emphasis added)).

A state cannot avoid this federal constitutional and state law requirement by mandating that without any procedural safeguards all expert and lay hearsay reports offered by the prosecution are admissible and conclusively reliable, which in effect shifts the determination of probable cause solely to the Legislature and the prosecutor and unconstitutionally allows for a finding of probable cause based solely on hearsay that has never been tested. *See Commonwealth v. McClelland*, 233 A.3d 717, 736 (Penn. 2020) (a preliminary hearing is “a critical stage of the proceedings and is intended . . . to be more than a mere formality. Due process clearly attaches, but due process is a flexible concept, incapable of precise definition . . . [A]t the hearing afforded appellant, the Commonwealth relied exclusively and only on evidence that could not be presented at a trial. This is precisely the circumstance and rationale upon which five Justices in *Verbonitz* determined Buchanan’s right to due process was violated.”).

Article I, section 12 and Rule 1102 establish an unfair and unreliable system that is a far cry from other systems that have been upheld against separation of powers challenges. *See, e.g., Whitman v. Superior Ct.*, 820 P.2d 262, 274 (Cal 1991) (“[W]e discern no separation of powers violation here. Although the prosecutor is allowed to rely on hearsay evidence. . . at the preliminary hearing, and may require the defendant to make a satisfactory proof offer before the defendant may call any defense witnesses . . . the magistrate retains full authority and discretion to rule on the sufficiency of the defendant’s proof offer, to allow the admission of relevant defense evidence, and ultimately to determine whether the proffered evidence demonstrates probable cause”); *Hosek v. Superior Ct.*, 12 Cal. Rptr. 2d 650, 652 (Cal. 5th 1992) (“The underlying presumption of the statute is that the experienced or trained investigating officer will do more than passively listen to the expert witness. The investigating officer presumably will know enough about the use in court of the particular variety of expert testimony and will ask the

right questions of the expert to establish a substantial degree of reliability of the expert's statement for preliminary examination purposes.”).

The requirement that a Utah criminal defendant not be held in prolonged custody unless a probable cause finding is made after a preliminary hearing gives effect to a vital constitutional right—the determination of probable cause required by the Fourth Amendment as a prerequisite to extended restraint of liberty following arrest. *See Gerstein* 420 U.S. at 124–25. Whatever procedure a state may employ, be it grand jury, adversarial hearing or other judicial determination, and whatever specific time period in which the state requires this be done, the state “must provide *a fair and reliable determination* of probable cause as a condition for any significant pretrial restraint.” *Id.* at 125 (emphasis added). Article 1, section 12 and Rule 1102 mandate that a court must accept the Legislature’s determination of reliability and do so without the aid of any adversary testing by the defense. It violates both the Fourth Amendment as articulated in *Gerstein* and separation of powers principles.

VI. Article 1, section 12 and Rule 1102 violate the Confrontation Clause of the Sixth Amendment.

Although the Utah Supreme Court held otherwise in *Timmerman*, for purposes of preserving this claim for further federal review, Mr. Robinson asserts that article 1, section 12 and Rule 1102 violate the Confrontation Clause of the Sixth Amendment.

Timmerman relied on the statement in *Barber v. Page*, 390 U.S. 719, 725 (1968) that “[t]he right to confrontation is basically a trial right.” *Timmerman*, 2009 UT 58, ¶ 10 However, the *Barber* decision was not concerned with the defendant’s confrontation rights at his preliminary examination—in fact, the defendant was given the opportunity to cross-examine witnesses at that hearing. 390 U.S. at 722. The issue, rather, was whether an unavailable witness’s preliminary examination testimony was admissible at trial as a substitute for live

testimony. *Id.* at 720. The Court held the preliminary examination testimony was not an adequate substitute because the right to confrontation at trial is a fundamental right. *Id.* at 725. Contrary to the *Timmerman* Court’s interpretation, the United States Supreme Court did not limit confrontation rights as only applying at trial.

The majority of Supreme Court Confrontation Clause jurisprudence has focused on how the right applies at trial. However, the Court’s right to counsel analysis in *Coleman* demonstrates that the scope of this Sixth Amendment “trial right” extends beyond the trial itself. The Court’s decision that the right to counsel extends to preliminary examination was based primarily on the defendant’s opportunity to cross-examine at that stage. And in *Gerstein*, the Court expressly acknowledged that at a preliminary hearing “[t]he importance of the issue to both the State and the accused justifies the presentation of witnesses and full exploration of their testimony on cross-examination.” 420 U.S. at 120.

CONCLUSION

For all of the foregoing reasons, this Court should rule that article I, section 12 and Rule 1102 are constitutionally infirm under the federal constitution and that the State is therefore precluded from utilizing article I, section 12 of the Utah Constitution, and Rule 1102 of the Utah Rules of Evidence to sanction the admissibility of hearsay evidence to establish probable cause at the preliminary hearing.

RESPECTFULLY SUBMITTED this 6th day of May, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
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/s/ Staci Visser
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CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 6th day of May 2026, which served all attorneys of record.

/s/ Staci Visser